INDIA NON JUDICIAL

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"This stamp paper forms an integral part of the lease agreement dated July 31, 2021 executed by and amongst Skyline Infotech Parks Private Limited, WSIP Two B SPV Holdco (HQ) Pte Ltd and Wale Gateway Business Park Private Limited."

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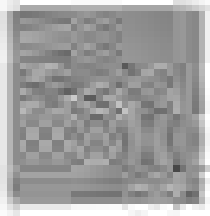

This stamp paper forms an integral part of the share purchase agreement dated July 21, 2017 executed by and among Hanging Industrial Parks Private Limited, IREP Sun-it REP Holdings (NQ) Pte Ltd and Ethos Urban Business Parks Private Limited.

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[illegible]

[illegible]

[illegible]

[illegible]
("[illegible]")

AND

[illegible]
("[illegible]")

AND

[illegible]

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9 [illegible] 9

10 [illegible] 10

[illegible] 11

[illegible] 12

[DRAFT EXECUTION VERSION]

This Share Purchase Agreement (the "Agreement") is executed on [•] [•] 2017 (the "Execution Date") by and between:

(1) [•], a private limited company incorporated under the Companies Act, 1956 and having its registered office at [•] (the "Purchaser", which expression shall, unless it be repugnant to the context or meaning thereof, include its successors and permitted assigns) of the FIRST PART;

(2) [•], a company incorporated under the laws of [•] and having its registered office at [•] (the "Seller", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the SECOND PART; and

(3) [•] VALENCIA HOUSING PARK PRIVATE LIMITED, a company incorporated under the laws of India having its registered office at [•] (the "Company", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the THIRD PART.

The Purchaser, the Seller and the Company shall hereinafter be referred to individually as a "Party" and collectively as the "Parties".

RECITALS:

(A) [•]

(B) [•]

(C) [•]

(D) [•]

(E) [•]

(F) [•]

(G) [•]

[illegible]

5.2 The Seller shall take all necessary and reasonable steps to assist in the completion of each of the Conditions Precedent prior to the Unconditional Date (as defined in Clause 6.1).

6. CLOSING

6.1 Subject to and conditional on receipt by the Purchaser of all the Conditions Precedent documents in form and substance to the Purchaser (acting reasonably) on or before the Long Stop Date (or such later date as the Parties may agree in writing), completion of the sale and purchase of the Sale Shares (the "Closing") shall take place at the offices of the Purchaser's solicitors on the Business Day immediately following the Unconditional Date (the "Closing Date").

6.2 On the Closing Date, the Seller shall deliver, or procure the delivery to the Purchaser:

(a) duly executed transfers in respect of the Sale Shares in favour of the Purchaser (or its nominee) and the share certificates relating to the Sale Shares (or an indemnity in the form set out in Schedule 3 in respect of any share certificate not delivered);

(b) a certificate addressed to the Purchaser dated the Closing Date and signed by a director of the Seller, certifying that each of the Warranties is true, accurate and not misleading as at the Closing Date;

(c) a certificate addressed to the Purchaser dated the Closing Date and signed by a director of the Seller, certifying that each of the Tax Warranties is true, accurate and not misleading as at the Closing Date;

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(xxx) The Company shall procure certified copies of the relevant updated documents of the Company Authority, the Pledgors or the owners of the Shares and the Pledgors' Guarantors (if any) from time to time as the Collateral Agent may request.

(xxx) All terms not otherwise defined in Clause 1 (Interpretation) ("Closing") shall be deemed to have the meanings ascribed to them in the Agreement.

9.2 The representations, warranties and undertakings made by the Company in this Clause 9 (Representations, Warranties and Undertakings) shall survive the execution of this Agreement and the Closing Date.

9.3 Notwithstanding anything to the contrary contained in this Agreement, the Company shall not, without the prior written consent of the Collateral Agent, create or permit to subsist any Encumbrance over the Shares or any part thereof.

9.4 Subject to the terms of the Shareholders' Agreement, the Pledgors shall be entitled to exercise all voting and other rights and powers in respect of the Shares, provided that no such exercise is inconsistent with the terms of this Agreement or the Shareholders' Agreement.

9.5 The Pledgors shall not, without the prior written consent of the Collateral Agent, exercise any voting or other rights or powers in respect of the Shares in any manner which would have the effect of:

(a) varying the terms of the Shares or the rights attaching to the Shares;

(b) increasing the authorised share capital of the Company;

(c) reducing the issued share capital of the Company;

(d) issuing any Shares or other securities in the Company;

(e) granting any option over or right to acquire any Shares or other securities in the Company;

(f) creating or issuing any debentures in the Company;

(g) paying any dividend or making any other distribution to the Pledgors in respect of the Shares; or

(h) otherwise prejudicing the rights of the Collateral Agent in respect of the Shares.

9.6 The Pledgors shall promptly notify the Collateral Agent of any change in the number of Shares held by the Pledgors.

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(xi) [illegible]

(xii) [illegible]

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(xiv) [illegible]

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(lxxxix) [illegible]

(xc) [illegible]

(xci) [illegible]

(xcii) [illegible]

(xciii) [illegible]

(xciv) [illegible]

(xcv) [illegible]

(xcvi) [illegible]

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(xcviii) [illegible]

(xcix) [illegible]

(c) [illegible]

(ci) [illegible]

(cii) [illegible]

(ciii) [illegible]

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(cv) [illegible]

(cvi) [illegible]

(cvii) [illegible]

(cviii) [illegible]

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(cx) [illegible]

(cxi) [illegible]

(cxii) [illegible]

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(cxl) [illegible]

(cxli) [illegible]

(cxlii) [illegible]

(cxliii) [illegible]

(cxliv) [illegible]

(cxlv) [illegible]

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(cxlvii) [illegible]

(cxlviii) [illegible]

(cxlix) [illegible]

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(clii) [illegible]

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(clviii) [illegible]

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(clxxxvi) [illegible]

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(clxxxviii) [illegible]

(clxxxix) [illegible]

(cxc) [illegible]

(cxci) [illegible]

(cxcii) [illegible]

(cxciii) [illegible]

(cxciv) [illegible]

(cxcv) [illegible]

(cxcvi) [illegible]

(cxcvii) [illegible]

(cxcviii) [illegible]

(cxcix) [illegible]

(cc) [illegible]

(cci) [illegible]

(ccii) [illegible]

(cciii) [illegible]

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(ccxlix) [illegible]

(ccl) [illegible]

(ccli) [illegible]

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(ccliii) [illegible]

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(cccii) [illegible]

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(cccvi) [illegible]

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(cccix) [illegible]

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(cccxli) [illegible]

(cccxlii) [illegible]

(cccxliii) [illegible]

(cccxliv) [illegible]

(cccxlv) [illegible]

(cccxlvi) [illegible]

(cccxlvii) [illegible]

(cccxlviii) [illegible]

(cccxlix) [illegible]

(cccl) [illegible]

(ccccli) [illegible]

(ccccli) [illegible]

(ccccli

6. [redacted]

6.1 [redacted]

6.2 [redacted]

6.3 [redacted]

6.4 [redacted]

(a) [redacted]

(b) [redacted]

(c) [redacted]

(i) [redacted]

(ii) [redacted]

Governmental Authority ("Third Party Claim") arises out of the Indemnified Person's or the Company's efforts to settle or defend any Third Party Claim or, the Indemnified Person does not promptly notify the Indemnifying Person in the foregoing manner and does not settle the Third Party Claim as provided in Section 9.4(c)(i);

(b) the Indemnified Person shall, at no cost or reasonable expense to it, give the Indemnifying Person and its counsel access to relevant information and materials in its possession relating to the Third Party Claim and the Indemnified Person;

(c) upon receipt of the Third Party Claim:

(i) the Indemnified Person shall notify the Indemnifying Person of the Third Party Claim and, together with such notice, provide copies of all relevant documents received by the Indemnified Person and all correspondence relating to the Third Party Claim;

(ii) the Indemnifying Person shall promptly cooperate with the Indemnified Person as reasonably necessary to enable the Indemnified Person to comply with the requirements of the Third Party Claim;

(iii) the Indemnified Person shall not admit any liability with respect to, or settle, compromise or discharge, the Third Party Claim without the Indemnifying Person's prior written consent (which consent shall not be unreasonably withheld or delayed); and

(iv) the obligations of the Indemnifying Person to indemnify the Indemnified Person in each of the circumstances in which the Indemnified Person is entitled to indemnification pursuant to this Section 9.4 in respect of any Third Party Claim are subject to the condition that, if the Indemnified Person fails to comply with its obligations set out in this Section 9.4(c) in connection with any Third Party Claim in a manner which materially prejudices the Indemnifying Person, then to the extent that such prejudice exists, the Indemnifying Person will be relieved from paying any portion of the Losses that it would otherwise be required to pay pursuant to the indemnification provisions of this Section 9.4 in connection with such Third Party Claim;

(d) notwithstanding the right of the Indemnified Person to defend any Third Party Claim in accordance with Section 9.4(c)(i), the Indemnifying Person shall have the right to retain, from time to time, counsel to monitor and participate on an equal basis in the defence of any Third Party Claim and, subject to the last sentence of this Section 9.4(d), the Indemnified Person shall not compromise or settle any Third Party Claim without the consent of the Indemnifying Person, such consent not to be unreasonably withheld or delayed; and

(e) if the Indemnifying Person elects to assume the defence of any Third Party Claim in accordance with Section 9.4(c)(i) above:

(i) the Indemnified Person shall cooperate with the Indemnifying Person as reasonably necessary to enable the Indemnified Person to comply with the requirements of the Third Party Claim;

(ii) the Indemnified Person shall not admit any liability with respect to, or settle, compromise or discharge, the Third Party Claim without the Indemnifying Person's prior written consent (which consent shall not be unreasonably withheld or delayed) unless the Indemnified Person shall have given the Indemnifying Person and its counsel access to relevant information and materials in its possession relating to the Third Party Claim and

[illegible]

[illegible]

9. [illegible]

9.1 [illegible]

9.2 [illegible]

9.3 [illegible]

10. GOVERNING LAW AND DISPUTE RESOLUTION

10.1 [illegible]

10.2 [illegible]

(a) [illegible]

(b) [illegible]

(c) [illegible]

[illegible]

[illegible]

[illegible]

[illegible]

(A) If to the Company:

Address: [illegible]

Email: [illegible]

Attention: [illegible]

(B) If to the Purchaser:

Address: [illegible]

Email: [illegible]

Attention: [illegible]

10. A Party may change or supplement the address given above, or designate additional addresses, for purposes of this Clause 10.3 by giving the other Party written notice of the new address in the manner set forth above, but such change shall only have any effect if it is given upon the receipt of such notice by the other Party.

11. CONFIDENTIALITY

11.1. Each Party agrees that it will not disclose the terms, provisions and conditions of this Agreement, and all information relating to the other Party or its affiliates or pursuant to or in connection with this Agreement to any person other than its employees, officers, directors, investors, potential financing sources, advisors, accountants, lawyers, or tax or other "Representatives", provided that such Representatives shall be bound by appropriate confidentiality obligations that are at least as stringent as those contained in this Agreement, but it shall be the responsibility of the disclosing Party that the obligations of confidentiality shall be applied to any unauthorized disclosure.

(A) the terms generally available to the public (other than by virtue of disclosure by the receiving Party);

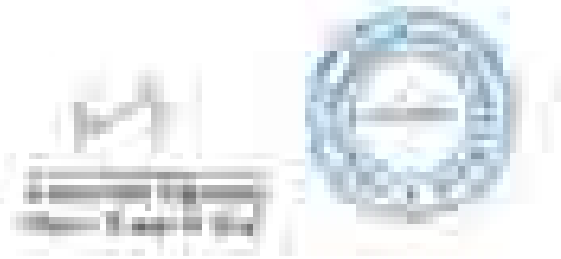
(B) as required by any court, tribunal or authority or by law (provided that the receiving Party shall, to the extent permitted by law, promptly notify the disclosing Party of such requirement prior to disclosure);

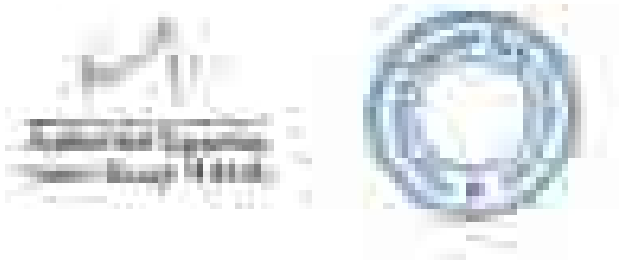
(C) as required or necessary in any proceedings or arbitration relating to this Agreement;

(D) to any professional adviser of the receiving Party, on a confidential basis;

(E) to the extent that any of such information was, prior to such disclosure, already lawfully in the possession of such Party, provided such information is not subject to any other Party's rights; or

(F) to the extent that any information, ideas, skills, concepts or know-how which are independently developed by such Party without reference to any information disclosed by any other Party hereto.





SCHEDULE I

SHAREHOLDING PATTERN OF THE COMPANY

PART A – AS ON THE EXECUTION DATE

Pharo Venture Business Park – Private Limited – Shareholding Pattern for Equity

Sr. No.	Name of the Shareholder	No. of equity shares held (face value ₹10 each)	Total shareholding as a percentage of total equity
1	[illegible]	4,900	49.00
2	[illegible]	5,100	51.00
	Total	10,000	100.0

PART B – AS ON THE CLOSING DATE IMMEDIATELY AFTER CLOSING

Pharo Venture Business Park – Private Limited – Shareholding Pattern for Equity

Sr. No.	Name of the Shareholder	No. of equity shares held (face value ₹10 each)	Total shareholding as a percentage of total equity
1	[illegible]	5,100	51.00
2	[illegible]	4,900	49.00
	Total	10,000	100.0

PART C – SHAREHOLDING PATTERN OF PREFERENCE SHARES AS ON CLOSING DATE

Pharo Industrial Warehousing Solutions Private Limited – Shareholding Pattern for Equity

Sr. No.	Shareholder	No. of Shares
1	Pharo Venture Business Park Private Limited	5,000
2	[illegible]	1
	Total	5,001

Pharo Logistics and Warehousing Solutions Private Limited – Shareholding Pattern for DCRPS

Sr. No.	Shareholder	No. of DCRPS of face value ₹100 each
1	[illegible]	8,40,000

SCHEDULE II

DETAILS OF SALE SHARES SOLD BY SELLER AND PURCHASE CONSIDERATION

Sl. No.	Name of the Company	No. of Sale Shares	Purchase Consideration payable (₹)
1.	[●]	[●] equity shares	[●]
Purchase Consideration			[●]

[illegible]

PART A: [illegible]

"Affiliate" shall mean with respect to any entity, any other entity, whether directly or indirectly, Controlling, Controlled by or under common Control with such entity, so long as such entity remains [illegible] or is otherwise controlled by such entity;

"Control" shall mean, with respect to any entity, the possession, directly or indirectly, of more than 50% (fifty per cent) of the voting rights in or of the issued share capital of such entity or the right to appoint and/or remove all or the majority of the members of the board of directors or other governing body of such entity. For purposes hereof as used in the definition of "Affiliate", to exercise control or influence or be recognized as exercise of [illegible] voting, whether through ownership of [illegible] or [illegible] by ownership of [illegible] the possession of voting rights through [illegible] or otherwise;

"Governmental Authority" shall mean any national, supranational, federal, state, provincial, local or similar government, governmental, regulatory or administrative authority, branch, agency, any [illegible] body or instrumentality and any governmental regulatory or administrative authority, body or other instrumentality of any kind, [illegible] and [illegible], [illegible] [illegible] [illegible]

Defined Term	Clause
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]
[illegible]	[illegible]

PART B: INTERPRETATION

In this Agreement, unless the context requires otherwise:

(a) words in any gender include all genders and neutral persons;

(b) words of one gender are deemed to include all other genders;

(c) references to "including" or "including" are to be construed without limitation;

(d) the terms "hereof", "herein", "hereto", "hereof" and terms of similar import refer to this entire Agreement and the Schedules, Schedules and all documents of this Agreement as the context requires;

(e) references to any legislation or to any of its provisions shall include a reference to that legislation, statute or statutory provision as amended, modified, supplemented, consolidated or replaced from time to time (whether before or after the date of this Agreement) and include all delegated legislation, rules, regulations or orders made pursuant to it (whether directly or indirectly) and any other legislation, statutory instrument, rule, regulation, order, bye-law, licence, permit or other subordinate legislation made under the relevant legislation or statutory provision;

(f) references to any document (whether or not a document or agreement) or any provision of that document (or the agreement) are to that document or provision as amended, varied, supplemented, novated or replaced from time to time, except to the extent prohibited by this Agreement and in the case of a document (or provision of a document) which is not binding on the parties, that is not in the agreed form;

(g) where any action is required to be taken under this Agreement on a day which is not a Business Day, that action shall be required to be taken on the next Business Day. For the purposes of this clause, "Business Day" means any day other than a Saturday, Sunday or public holiday in England and Wales;

(h) any reference to "writing" shall include printing, typing, lithography, electronic mail, facsimile transmission, telex and other means of reproducing words in a visible form, but excluding text messaging (or similar) unless expressly agreed;

(i) time is of the essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of the essence.